

Contentious Chamber

Decision on the merits 26/2024 of February 7, 2024

File number: DOS-2023-03948

Subject: Exercise of the right to erasure concerning an email address

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Dirk VAN DER KELEN and Frank DE SMET, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "GDPR");

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Mr. X, hereinafter "the complainant"

The defendant:

Y, hereinafter "the defendant"

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I. Facts and procedure

1.

On September 20, 2023, the complainant filed a complaint with the Data Protection Authority against the defendant.

2.

The subject of the complaint concerns the lack of an appropriate response from the defendant to the complainant's request for the erasure of his personal data, specifically his email address [...], which the defendant uses to send unsolicited advertising to the complainant. The complainant requested the erasure of the data on November 9, 2022, and again on November 14, 2022. Despite the defendant's confirmation, following this second request, that the necessary actions had been taken, the complainant still received unsolicited advertising from the defendant on January 16, 2023, via email. This led to Decision 09/2023 of February 9, 2023. Despite the fact that following the aforementioned decision, the defendant informed the Contentious Chamber on March 8, 2023, that the complainant's email address had been erased, the complainant still received unsolicited advertising from the defendant, which led to the present complaint.

3.

On October 6, 2023, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

4.

On October 31, 2023, based on Article 95, § 1, 1° and Article 98 of the LCA, the Contentious Chamber decided that the file could be examined on the merits and informed the concerned parties by registered mail of the provisions as stated in Article 95, § 2 and Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

The deadline for receiving the defendant's response conclusions was set for December 11, 2023, the deadline for the complainant's reply conclusions for January 3, 2024, and the deadline for the defendant's reply conclusions for January 24, 2024.

5.

On November 14, 2023, the Contentious Chamber received from the defendant, within the deadline for submitting conclusions, detailed explanations outlining the reasons why the complainant still received

unsolicited emails even after Decision 09/2023 of February 9, 2023.

6.

Despite the time granted to the complainant to submit his conclusions, he did not submit any reply conclusions to the Contentious Chamber. Consequently, the defendant also did not submit any reply conclusions.

7.

On February 1, 2024, the complainant informed the Contentious Chamber that the complaint is still relevant.

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II. Rationale

8. The factual elements underlying Decision 09/2023 dated February 9, 2023, concern the receipt of unsolicited advertising messages at the email address [...]. In the complaint that gives rise to this decision, the complainant simply refers to the aforementioned Decision 09/2023, asserting that it has not been executed by the respondent, as the complainant continues to receive unsolicited advertising messages. This conduct by the respondent could potentially result in a violation of Articles 12.3 and 12.4 of the GDPR in conjunction with Article 17.1 of the GDPR.

9. However, the respondent explains that the complainant's right to erasure dated November 9, 2022, concerned the email address [...], and the effectiveness of this right was confirmed by the Litigation Chamber, in accordance with Decision 09/2023, and that the personal data of the complainant associated with the email address in question has therefore been deleted from the database. The respondent adds that the complainant evidently had another account with a different email address. After receiving a new request from the complainant informing that he had again received a prospecting email, the respondent was able, based on this request, to associate the email address [...] with the first name and last name of the complainant. This second account was linked to another email address and had not been deleted for this reason, as it was not subject to the first request. The respondent emphasizes in this context that the unique identification code used to distinguish different profiles in the database is solely the email address. Any request sent via an email address is therefore only processed for the same email address to avoid confusion in the case of namesakes. This explains why unsolicited advertising messages were sent by email to the address [...].

10. The respondent explains that the complainant's account and the corresponding email address [...], as mentioned in the complaint and in the documents provided by the complainant, which gave rise to Decision 09/2023, have indeed been deleted, as confirmed to the Litigation Chamber by letter dated March 8, 2023. In the meantime, following the present complaint and after it was clearly established that the complainant still had a second account with the email address [...], this account has also been deleted.

11. The explanations provided by the respondent convince the Litigation Chamber, given that the documents submitted by the complainant to support the exercise of his right to erasure, to which no follow-up was reserved by the respondent, giving rise to Decision 09/2023, concerned only the email address [...]. No factual element in the file allowed the respondent to deduce that the complainant still had a second account with a somewhat similar email address or another email address. It cannot also be expected of the respondent to search on its own initiative for a second account, or even multiple accounts with a (or several) similar email address(es) possibly belonging to the same data subject without the identity of the data subject to whom the account belongs being established with certainty. This also follows from Article 17.1 of the GDPR, which specifies that the data subject has the right to obtain the erasure of personal data concerning him or her and does not imply an obligation for the respondent to proceed with the erasure of personal data for which it is not established that they belong to the data subject. This also explains why Article 12.6 of the GDPR provides that when the data controller has reasonable doubts as to the identity of the natural person making the request referred to in Articles 15 to 21, it may request that additional information necessary to confirm the identity of the data subject be provided. However, the Litigation Chamber considers that in this case, the respondent did not have elements leading it to doubt the identity of the complainant and the right to erasure that he exercised concerning the email address [...] with the supporting documents he provided that concerned only this email address. Therefore, there was no reason, on the part of the respondent, to

request additional information aimed at confirming the identity of the complainant concerning the email address [...].

12. It follows from the above that the Litigation Chamber believes that the respondent has done everything possible to clarify the situation in favor of the complainant by proceeding with the deletion of the email address [...] as soon as it became certain that a second account with this email address belonged to the complainant; and the email address [...] had already been deleted previously in compliance with the order to erase the data as imposed in Decision 09/2023. This leads the Litigation Chamber to conclude that the current complaint does not give rise to the finding of a new violation of Articles 12.3 and 12.4 of the GDPR in conjunction with Article 17.1 of the GDPR.